
Competition and Consumer Act 2010

Variation to an Undertaking given to the
Australian Competition and Consumer
Commission under section 87B

Given by Skandinavisk Holding A/S and Swedish Match A/B

1 Persons giving this Variation

- 1.1 This Variation is given to the Australian Competition and Consumer Commission (ACCC) by:
- (a) Skandinavisk Holding A/S (**SH**), on behalf of itself and its subsidiaries including its wholly owned subsidiary Scandinavian Tobacco Group A/S (**STG**); and
 - (a) Swedish Match AB (**SM**), on behalf of itself and its subsidiaries including its wholly owned subsidiary, Swedish Match Australia Pty Limited CAN 081 215 321 (**SM Australia**);
- (together the **Parties**)
- 1.2 A reference in this Variation to 'the Parties' refers to SH and SM both jointly and severally.

2 Background

- 2.1 On 29 September 2010, the Australian Competition and Consumer Commission (ACCC) accepted an undertaking (the **Undertaking**) under section 87B of the *Trade Practices Act 1974* (now cited as the *Competition and Consumer Act 2010*) (the **Act**) from the Parties in connection with the Proposed Merger.
- 2.2 The Parties have applied to the ACCC to vary the Undertaking with the purpose of extending the period in which to produce regular Auditor's Reports to the ACCC.

3 Commencement

- 3.1 This Variation comes into effect when:
- (a) this Variation is executed by the Parties; and
 - (b) the Commission accepts this Variation so executed.

4 Variation to clause 8.5 – Compliance Audit

- 4.1 Clause 8.5(c) of the Undertaking is amended by inserting "*the Auditor's Report following the Divestiture Date. Thereafter the Auditor's Report is to be provided every 3 months until*" after the word "*until*".
- 4.2 The varied Clause 8.5(c) of the Undertaking will accordingly read as follows:
The Approved Independent Auditor is to provide the first Auditor's Report to the ACCC and the Parties within 10 Business Days of the Completion Date and thereafter every month until the Auditor's Report following the Divestiture Date. Thereafter the Auditor's Report is to be provided every 3 months until the termination of this Undertaking.

5 Defined terms and interpretation

- 5.1 Any term defined in the Undertaking and not defined in this Variation has the meaning given in the Undertaking, unless the contrary intention appears.
- 5.2 **Variation** means this variation to the Undertaking.

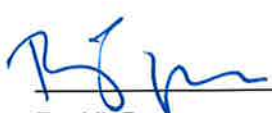
Signed by **Skandinavisk Holding A/S** by its authorised signatory:


[Name] CLAUD BAGGEE  JØRGEN ANDERSEN

[Position] MAN. DIRECTOR CHAIRMAN

Date 8/3 2011

Signed by **Swedish Match A/B** by its authorised signatory:


Fredrik Peyron  Lars Dahlgren

General Counsel CEO

7/3 - 2011
Date

Accepted by **The Australian Competition and Consumer Commission** pursuant to section 87B


Graeme Julian Samuel
Chairman

18th March 2011
Date: